



U.S. Department
of Transportation

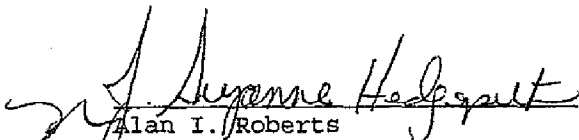
Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 8910 (EXTENSION)
FIRST REVISION December 14, 1987

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8910 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 14 1994

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Canbar, Inc.
Waterloo, Ontario, Canada
(U.S. AGENT: Canbar, Inc.
Conover, NC)

June 8, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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400 Seventh Street, S.W.
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DOT-E 8910
FIRST REVISION

DEC 14 1987

1. Canbar Products Limited, Waterloo, Ontario, Canada, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph below to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the corrosive liquids described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of a non-DOT specification rotationally molded, linear low density polyethylene portable tank enclosed in a steel cage, for the shipment of corrosive liquids, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Canbar Products Limited's applications dated August 23 and 26, 1982, and October 28, 1982 and supplemental letter (with drawings) dated May 21, 1987, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Corrosive liquids for which DOT-34 reusable polyethylene container is prescribed in 49 CFR Part 173, and which have no secondary hazards and a vapor pressure of no greater than 14.7 psia at 130°F, classed as corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Corrosive liquid, n.o.s.; or the specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR Part 173, subpart F; 178.19, and 178.253.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a non-DOT specification rotationally molded polyethylene portable tank not exceeding 300-gallon capacity, enclosed in an outer steel cage, as shown in Canbar Products Ltd. drawing No. CBP 3990-2, dated August 30, 1978 or CBP 3990-6, dated November 19, 1986, and furnished with petitioner's application and supplemental letter. Each tank must be constructed in compliance with 49 CFR 178.19 except as follows:

- i. 178.19-2(a) - Does not apply. Instead, container shall be rotationally molded of polyethylene which has been specifically identified and acceptable to the Office of Hazardous Materials Transportation (OHMT).
- ii. 178.19-3 - Minimum thickness of container shall be 0.250 inches.
- iii. 178.19-4 - Does not apply. Opening authorized as per drawing No. CBP 3990-2 or 3990-6.
- iv. 178.19-6(a) - Does not apply. Instead, Each portable tank must be permanently marked by embossment or with a

tank. The markings must be in letters and number at least 1/4-inch high located on the side of the tank. The markings shall be understood to certify that the portable tank complies with all requirements of this exemption and must contain at least the following information:

DOT-E 8910 portable tank
 Tank Manufacture _____
 Test pressure 12 psig. _____
 Serial number _____
 Date of manufacture (month and year) _____
 Tare weight _____ lbs.
 Rated gross weight _____ lbs.
 Capacity _____ U.S. gal.
 Do Not Stack _____
 Do Not Place Other Freight On Top of This Tank

- v. 178.19-7(a)(3) - Changed to read: Each portable tank shall be tested by retaining for 5 minutes, hydrostatic pressure of at least 12 psig at equilibrium without leakage or pressure drop.
- vi. 178.19-7(c)(2) does not apply.
- b. Each tank must be fitted with a pressure relief device that will limit the pressure in the tanks to 12 psig and is in accordance with 49 CFR 178.253-4 except as follows:
 - i. 178.253-4(c)(1) - The pressure relief device must open at not less than 10 psig and not over 12 psig.

The minimum venting capacity for pressure activated vents must be 6,000 SCFH at not more than 12 pounds per square inch gauge.
 - ii. 178.253-4(c)(3) - The fusible device must function at a temperature no greater than 250°F and at no greater than the tank test pressure 12 psig.
- c. Portable tanks must be capable of satisfactorily withstanding the drop test and hydrostatic pressure test prescribed in 49 CFR 178.19-7(a) and the vibration test prescribed in 49 CFR 178.253-5(a)(1).
- d. Additionally, portable tank must possess the chemical and physical properties as reported to the OHMT by enclosures to petitioner's letters dated August 23, 26 and October 28, 1982, and May 21, 1987.
- e. Any changes in design, resin, or process methods must be approved by the OHMT.
- f. Reuse of any portable tank must be in accordance with the applicable requirements of 49 CFR 173.28 and 173.32(f) as modified herein.

Each portable tank must be hydrostatically retested in accordance with 49 CFR 173.32(f) as applicable to DOT Spec. 57 tanks, at a test pressure of 12 psig for 5 minutes without a drop in pressure or leakage. Any tank that fails must be rejected and may not be used again for the transportation of hazardous materials. The date of the most recent periodic retest must be marked on the tank near the tank identification markings required in 7, a, ii of this exemption. The owner of the tank or his authorized agent must retain a written record indicating the date and results of all required tests and the name and address of the tester, until the next retest has been satisfactorily completed and recorded.

g. Portable tanks having any portion of their molded body or components repaired are not authorized.

h. Commodities must be compatible with the polyethylene (PE) portable tank, and must not permeate the PE to an extent that a hazardous condition could be caused during transportation and handling.

i. Any fitting used must be protected in accordance with 49 CFR 178.253-3.

j. The sides of each portable tank must be marked "KEEP THIS END UP" in two places, 180 degrees apart, with an arrow pointing to the tank top.

k. Tanks must always be filled and shipped in the outer steel cage as shown in Canbar's drawing and brochure included in petitioner's application.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.

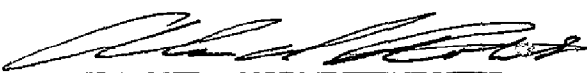
b. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 8910", "Do Not Stack", and "Do Not Place Other Freight On Top Of This Tank."

c. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. March 31, 1989.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

DEC 14 1987

(DATE)

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Continuation of DOT-E 8910 1st Rev.

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Address all inquiries to: Director, Office of Hazardous Materials Transportation,
Research and Special Programs Administration, U.S. Department of Transportation,
Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA